National Environment Agency
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Chief Executives, BCA-Registered Contractors for Air-Conditioning, Refrigeration & Ventilation Works
Chief Executives, Suppliers of Water-cooled Chillers
Chief Executives, Registered Suppliers and GHG Entities under the Environmental Protection and Management Act (EPMA)

Dear Sir/Mdm

SUBSIDIARY LEGISLATIONS AND ORDERS ON REGULATED GOODS AND GREENHOUSE GAS (GHG) WORKS UNDER THE ENVIRONMANTAL PROTECTION AND MANAGEMENT ACT (EPMA)

1 As a follow up to the circular NEA-CMD-CIRCULAR-EPMA-00001-2021, dated 12 October 2021) and the email reminders sent between February to September 2022, companies may wish to note that the subsidiary legislations governing (i) the restriction on supply of new water-cooled chillers[1] that use high global warming potential (GWP) refrigerants and (ii) the regulated GHG works have come into effect on 1 October 2022.

Restriction on supply of new water-cooled chillers that use high GWP refrigerants

2 The GWP of the refrigerant used or required in the regulated water-cooled chillers should not exceed the prescribed GWP limit of 15.

3 Any importer or manufacturer that intends to supply any of the regulated goods in Singapore, must register online to be a registered supplier and register the regulated goods with NEA before supplying the regulated water-cooled chillers in Singapore.

Regulated GHG works

4 Companies carrying out regulated GHG works **that involve refrigerant handling** (i.e. charging, maintenance, decommissioning of specified water-cooled chiller[2] (chiller)) must register online to be a GHG entity and employ at least one chiller technician certified in the Refrigerant Handling for Chiller technical course.

5 GHG entities and their certified chiller technicians (competent persons) must ensure that regulated GHG works are carried out in a manner that does not involve or cause the release of any refrigerant into the atmosphere; including but not limited to:

i. inspecting the chiller for any refrigerant leaks when carrying out/supervising regulated GHG works that involve the charging or maintenance of any chiller and repairing all refrigerant leaks found;
ii. recovering all refrigerants contained in the chiller where the regulated GHG works involve the decommissioning of any chiller; and
iii. sending all refrigerant recovered in carrying out of any regulated GHG works that is not charged back into the chiller to a licensed toxic industrial waste collector for storage, reprocessing, usage, treatment or disposal

[1] Chillers that are supplied pursuant to an agreement entered into before 1 October 2022 will not be regulated.
[2] Any electrically driven water-cooled chiller that requires for its use or operation a refrigerant, where a greenhouse gas, or a blend or mixture of greenhouse gases, contained in the refrigerant, has a GWP of more than 15.

6 GHG entities are also required to keep and maintain complete and accurate records of any regulated GHG works carried out, including documents showing that recovered refrigerants mentioned in para 5 (iii) are sent to licensed TIWCs. The records must be kept for a minimum period of 5 years.

Subsidiary Legislations and Orders

7 The subsidiary legislations and orders on the regulatory measures can be found in the links below.

Restriction on the supply of new regulated RAC equipment that use high GWP refrigerants	1. Environmental Protection and Management (Greenhouse Gases) Regulations 2022 2. Environmental Protection and Management (Prescribed Regulated Goods) Order 2022 3. Environmental Protection and Management (Regulated Goods and Registered Suppliers) Regulations 2022 4. Environmental Protection and Management (Regulated Goods – Exemption) Order 2022
Regulated GHG works	1. Environmental Protection and Management (Greenhouse Gases) Regulations 2022 2. Environmental Protection and Management (Registered GHG Entities and Competent Persons) Regulations 2022

8 We would also like to remind the industry that non-compliance with the regulations in para 7 is an offence under the EPMA and shall be liable on conviction to a fine or to imprisonment or to both.

9 For any clarification, please contact Ms Weng Shiya (email: WENG_Shiya@nea.gov.sg), Mr Heng Cheng Li (email: HENG_Cheng_Li@nea.gov.sg), Mr Dyron Pang (email: Dyron_PANG@nea.gov.sg), or Mr Woo Wai Yin (email: WOO_Wai_Yin@nea.gov.sg).

Yours faithfully
(Transmitted via email)



Suresh K.
Director
Carbon Mitigation Division
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